

25AVCV01579 25AVCV01579

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C06%2F23%2F2026

Source SHA-256: ee73a29999fde47176c7cc5a4bf35bc5c3ac134c0db62591c497c96befca77b2

Case Number: 25AVCV01579 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CONNER ATTOM, an individual

Plaintiff,

v.

SALAMON ALASSAD; ANTELOPE VALLEY CRAB N SPICE LLC; and

DOES 1-20,

Defendants.

Case Number 25AVCV01579

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a defamation and harassment action. Plaintiff Conner Attom ("Plaintiff") alleges that between October and December of 2025, Plaintiff was a customer of Crab N Spice, a restaurant located in Palmdale, California (the "Restaurant"). Plaintiff alleges that Defendant Salamon Y. Alassad ("Defendant") repeatedly targeted Plaintiff and Plaintiff's friends, attempting to engage in violent, aggressive, and threatening conduct. Plaintiff alleges that Defendant made false defamatory statements about Plaintiff referring to sexual conduct subjecting Plaintiff to ridicule and harm. Further, Plaintiff alleges that Defendant made a false 911 call in an attempt to get Plaintiff banned from the Restaurant.

On December 1, 2025, Plaintiff filed their Complaint, alleging two causes of action for Intentional Tort and Defamation.

On April 3, 2026, Defendant filed their Answer.

On April 13, 2026, Plaintiff filed the instant motion for leave to file First Amended Complaint ("FAC").

On April 29, 2026, Defendant filed their Opposition.

On May 7, 2026, the motion was called for hearing and continued to June 23, 2026.

On June 10, 2026, Defendant filed their Supplemental Opposition.

No Reply has been filed as of June 15, 2026.

II. Legal Standard

Standard for Leave to Amend – "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading." (Code Civ. Proc., § 472(a).)

Trial courts may, in furtherance of justice and on any proper terms, allow a party to amend any pleading. (Cal. Code Civ. Proc., §473(a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) Trial courts may also, in their discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Cal. Code Civ. Proc., §473(a); *Branick, supra*, 39 Cal.4th at 242.) Leave to amend is generally liberally granted, provided there is no statute of limitations concern. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411.) Additionally, "judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1047.) Trial courts may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Branick, supra*, at 242.)

Under California Rules of Court Rule 3.1324, a motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (Id., rule 3.1324(b).)

III. Discussion

Application – Plaintiff requests leave to amend the Complaint to (1) add Antelope Valley Crab N Spice LLC as an additional defendant; (2) clarify factual allegations and; (3) add causes of action based on facts already present in the Complaint.

As a procedural issue, Defendant argues that they did not receive the Motion for Leave to Amend as stated in proof of service and had to obtain it through the court docket. (Opposition, p. 3.) The Court previously continued the hearing to address these service concerns and allow Defendant meaningful opportunity to respond. (Minute Order, May 7, 2026.) The service concerns have been addressed.

Plaintiff argues that the delay in requesting leave to amend the Complaint is due to delay in uncovering facts to confirm the correct legal entity connected to the Restaurant. (Attom Decl., ¶¶ 3-4.) Plaintiff argues that the amendment will allow all parties to be joined in the same action; that there is no prejudice to any party; and the FAC is based on the same operative facts and will not surprise the parties with wholly new disputes. (Motion, p. 4.)

Defendant argues that Plaintiff has failed to show diligence, the FAC introduces new allegations, and the amendment would result in undue prejudice to Defendant. (Opposition, p. 1.) Defendant argues that although Plaintiff states his discovery of the legal entity connected to the Restaurant was delayed, he provides no specific explanation for why. (Opposition, p. 2.) Defendant argues that the FAC injects conclusory facts and allegations requiring them to reassess and restructure its defense. (Opposition, p. 3; Supplemental, p. 3.) Defendant argues this results in undue prejudice and expands the scope of litigation unnecessarily. (Opposition, p. 3.)

The Court has taken Defendant's concerns into consideration and has reviewed the Motion for Leave to File FAC.

While the original moving papers contained the bulk of the details about the alleged incidents, the amended moving papers provide more specific details. The FAC maintains the Defamation claim and adds causes of action for violation of the Unruh Civil Rights Act and Malicious Prosecution. (Motion, Exh. A. (Proposed FAC), pp. 5-6, 9.) The FAC also divides the general intentional tort claim into specific causes of action including intentional infliction of emotional distress and negligence. (Proposed FAC, pp. 7-8.) The additional causes of action organize allegations present in the original Complaint into more pointed causes of action and provide more specific facts in order to plead those claims. The Court does not find it to be so significant as to prejudice Defendant because the general allegations were largely present in the original Complaint.

Plaintiff has provided the court with a copy of the proposed amended pleading and stated what allegations are proposed to be added to the pleading. (Proposed FAC; Motion, p. 2.) Plaintiff has also provided a separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier. (Attom Decl., ¶¶ 2-4.) Thus, Plaintiff has complied with the requirements of Rule 3.1324.

"A trial court has wide discretion to allow the amendment of pleadings, and generally courts will liberally allow amendments at any stage of the proceeding." (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.) Such a policy allows cases to be disposed of on their merits where the authorization for amendment does not prejudice the substantial rights of others. (Board of Trustees v. Super. Court (2007) 149 Cal.App.4th 1154, 1163.) Simultaneously, it is equally well established that at an unwarranted delay in seeking to amend is one valid ground on which to deny a motion to amend. (See Huff v. Wilkins (2006) 138 Cal.App.4th 732, 736["[E]ven if a good amendment is proposed in proper form, unwarranted delay in presenting it may-of itself-be a valid reason for denial." [Citation.]"]; Hulsey v. Koehler (1990) 218 Cal.App.3d 1150, 1159 [stating appellate courts are less likely to find an abuse of discretion where the proposed amendment was "offered after long unexplained delay" or "where there is a lack of diligence"]; Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 613 ["The law is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court's denial of the amendment."].) A trial court has discretion to deny a motion for leave to amend where both "inexcusable delay and probable prejudice" is shown. (Magpali v. Farmers Group (1998) 48 Cal.App.4th 471, 487-488.) However, even in cases of delay in moving to amend, it is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) In sum, it is "a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

Here, the delay in seeking leave to amend has been explained by Plaintiff. Plaintiff sought leave to file the FAC after discovering facts which confirmed that Antelope Valley Crab N Spice LLC is the correct legal entity connected to the Restaurant. (Attom Decl., ¶ 3.) Pursuant to the policy of liberality in permitting amendments, the Court finds the amendments are in furtherance of justice and Defendant will not be prejudiced. An allowance of the filing of the FAC would benefit not only the judicial economy, but both parties, as it would allow for the resolution of all disputed matters in the same lawsuit. (Kittredge Sports Co., supra, 213 Cal.App.3d 1045, 1047; Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939.)

Accordingly, the Motion for Leave to File FAC is GRANTED.

IV. Conclusion

Plaintiff Conner Attom's Motion for Leave to File First Amended Complaint is GRANTED.